

10. 9:00 AM CASE NUMBER: C24-02065

CASE NAME: MARIA ADRIANO VS. ANGELA GERALDI

*HEARING ON MOTION IN RE: SUBSTITUTE EDWIN F. RIVERA IN PLACE OF DECEASED PLAINTIFF,
ANA MATILDE VASCONCELOS VDA DE SANCHEZ

FILED BY: ADRIANO, MARIA LUZ

TENTATIVE RULING:

Plaintiff ANA MATILDE VASCONCELOS VDA. DE SANCHEZ ("Decedent") by and through her successor-in-interest, EDWIN F. RIVERA ("Successor-in-Interest") filed a Motion to Substitute the Successor-in-Interest in place of the Decedent plaintiff as a party herein on or about September 24, 2025 (the "Motion to Substitute"). The Motion to Substitute was set for hearing on February 9, 2026. The Motion to Substitute is unopposed.

Analysis

Code of Civil Procedure section 377.33 provides that "[t]he court in which an action is commenced or continued under this article may make any order concerning parties that is appropriate to ensure proper administration of justice in the case, including appointment of the decedent's successor in interest as a special administrator or guardian ad litem." See Code Civ. Proc. § 377.33.

Code of Civil Procedure section 377.31 provides that "[o]n motion after the death of a person who commenced an action or proceeding, **the court shall allow a pending action** or proceeding that does not abate **to be continued** by the decedent's personal representative or, if none, **by the decedent's successor in interest.**" See Code Civ. Proc. § 377.31 (emphasis added).

This requires the decedent's successor in interest to file a declaration containing certain affirmations. See Code Civ. Proc. § 377.32. Among other things, those affirmations include that the decedent is the successor in interest and that "[n]o other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding." *Id.*

The supporting declaration filed by the Successor-in-Interest here complies with those requirements. See Declaration of Edwin F. Rivera filed as part of the Motion to Substitute, ¶¶2-7.

Disposition

The Court finds and rules as follows:

1. The Motion to Substitute is GRANTED.
2. Moving party to prepare the proposed form of order.

11. 9:00 AM CASE NUMBER: C24-02786

CASE NAME: KRISTOPHER BATEMAN VS. DOES 1 TO 50 INCLUSIVE

*HEARING ON MOTION IN RE: QUASH SUBPOENAS ISSUED ON 3/12/25

FILED BY: BATEMAN, KRISTOPHER

TENTATIVE RULING:

Plaintiff Kristopher Bateman ("Plaintiff") filed two motions to quash subpoenas [(1) a Motion to Quash

Subpoenas Issued on March 12, 2025 (the “First Motion to Quash”) and (2) a Motion to Quash Subpoenas Issued on August 15 and 18, 2025 (the “Second Motion to Quash”)] on or about September 23, 2025 (collectively, the “Motions to Quash”). The Motions to Quash were set on February 9, 2026. The motions are opposed.

Background

Plaintiff sued various defendants, including defendant Modern China Cafe Inc (the “Cafe”) in its Complaint for Damages filed October 16, 2024. The Complaint alleges that the Cafe and others are liable for damages suffered by the Plaintiff stemming from an alleged assault that took place at the Modern China Cafe in Walnut Creek.

Motion to Quash Subpoenas Issued on March 12, 2025

The First Motion to Quash seeks an order quashing the subject subpoenas or, in the alternative, “modifying the March 12, 2025 subpoenas to restrict production to records of treatment concerning Plaintiff’s face and jaw for the five years preceding the May 28, 2024 incident to the present.”

Plaintiff also seeks an order “compelling Defendant to immediately destroy any medical records already obtained through these subpoenas that fall outside the permissible scope of discovery, and prohibiting any further use of such records.”

Finally, the motion seeks an order disqualifying MCC’s counsel due to the asserted “improper use of Plaintiff’s private medical records...”

The subpoenas at issue are five subpoenas to Plaintiff’s medical providers. See Declaration of Michael D. Herman filed September 25, 2025 (re First Motion to Quash), ¶13. Plaintiff’s counsel served written objections taking issue with the scope of the categories of documents subpoenaed. *Id.* at **Exhibit 2**. Objections are broadly raised on grounds such as that the “the requests invade the Plaintiff’s constitutional right to privacy are impermissibly overbroad and irrelevant to the subject matter of this action in that it seeks disclosure of Plaintiff’s medical history that does not relate to the injuries which are the subject matter of this action...” *Id.*

Motion to Quash Subpoenas Issued on August 15 and 18, 2025

The Second Motion to Quash seeks similar orders but is addressed to four other records subpoenas issued to Plaintiff’s medical providers and others, including the Livermore City Police Department, the Contra Costa County Records Unit, and the San Jose Police Department. Declaration of Michael D. Herman filed September 25, 2025 (re Second Motion to Quash), ¶13 *et seq.* Similar objections were made by Plaintiff. *Id.* at **Exhibits 2 and 4**.

Analysis

Plaintiff failed to file Separate Statements in support of the Motions to Quash. Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement, including a motion to “...quash the production of documents or tangible things at a deposition.” Rule 3.1345(a)(5) of the California Rules of Court (“CRC”); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) (“Rutter Civ. Pro.”) § 8:602.5. For that reason, the motions are procedurally defective.

Even if not procedurally defective, Plaintiff’s meet and confer letters and the motion papers themselves fail to adequately address particular objections as to particular categories of subpoenaed documents.

Plaintiff asserts, broadly, the that subpoenas were “sweeping” and that “[e]ach subpoena requested ‘all’

of Plaintiff's medical records, images and diagnostics, communications with his providers, and billing documents." See First Motion to Quash, p. 2. Plaintiff asserts that "[t]he only limitation was a date restriction beginning January 1, 2018, with no restriction as to body part, condition, or relevance to the subject incident." *Id.*

On their face, those statements fail to precisely address the requests at issue. The proffered copies of the subject subpoenas contain varying requests, many of which contain more limited language, including as to the express time limitations. See e.g. Deposition Subpoenas for Production of Business Records dated March 12, 2025 (containing various limitations such as "...from 01/01/2020 to the present..." and "from 01/01/2018 to the present including,..."). See Declaration of Michael D. Herman filed September 25, 2025 (re First Motion to Quash). Of course, the review of such particulars is hampered by Plaintiff's failure to file Separate Statements in support of the Motions to Quash.

Furthermore, Plaintiff could have taken steps earlier to seek a Protective Order to obtain an adjudication on the scope of the subpoenas, but failed to do so.

No "misuse of records outside the scope of discovery" is shown by any declaration with a showing of specific factual circumstances surrounding an improper use of subpoenaed records by anyone, much less the Cafe's attorneys. See Declaration of Michael D. Herman filed September 25, 2025 (re First Motion to Quash), ¶16.

Disposition

The Court finds and orders as follows:

1. The Motions to Quash are DENIED.
2. In the exercise of its discretion, the Court, *sua sponte*, orders the parties to meet and confer, in good faith, **within thirty (30) days** regarding the scope of the subpoenaed records at issue in the Motions to Quash to address the following:
 - a. Whether any agreements may be reached regarding the scope of the requests, including the return or destruction of documents that the parties agree are beyond the scope of permissible discovery in relation to the claims at issue; and
 - b. Whether the matter may be resolved, in whole or in part, by stipulating to a Protective Order to protect the confidentiality of the documents and to govern their use and dissemination.
3. In meeting and conferring as set forth above, the parties are admonished to be mindful that, generally, all medical and/or psychological records that are related to the claimed injuries put at issue by the Plaintiff are discoverable. See Evid. Code §§ 996 and 1016; see also Weil & Brown, *et al.*, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025), § 8:305 *et seq.* Moreover, while relevant medical and/or psychological records may include records beyond treatment for the subject injuries, the parties should consider other reasonable limitations on the scope of the discovery such as a reasonable timeframe or limitations related to areas of the body, etc.
4. The Court shall issue the order after hearing.

12. 9:00 AM CASE NUMBER: C24-02786
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